

The Non-Justiciability Meme: FIFA's Prerogative State and the Four Century Genealogy of a Legal Concept

Abstract

On August 15, 2022, FIFA suspended the All India Football Federation within hours of a Supreme Court order appointing an administrative committee to reform the federation's governance. The same FIFA spent seven years cooperating with Swiss prosecutors investigating its own leadership without directing any sanction at the Swiss Football Association. This paper argues that the asymmetry reflects a four-century conceptual mechanism: the non-justiciability of political decisions. FIFA extracted this mechanism from constitutional law, privatized it, and redeployed it as a selective enforcement tool against states with high football identity and low institutional power relative to the organization. Drawing on Ernst Fraenkel's analysis of the dual state (El Estado dual, Trotta, 2022), the Baker v. Carr genealogy of the political question doctrine, and Extended Phenotype Theory (EPT), I construct a three-layer model of what I term the FIFA Immunity Memeplex. I apply a two-variable analytical model to eight documented cases across three continents, demonstrating that the non-interference principle is activated with a selectivity that FIFA's own official justifications cannot explain. The paper proposes a three-zone taxonomy of 'non-justiciable football matters' that distinguishes a narrow legitimate core from a broad zone that constitutional theory and EPT both identify as properly subject to state oversight. Argentine constitutional jurisprudence provides an additional analytical lever: the Supreme Court of Justice of the Nation progressively dismantled its own non-justiciability enclave from Cullen v. Llerena (1893) through Fayt, Bussi, and Brussa, consistently reducing the immune zone when fundamental rights or institutional power were at stake. A private Swiss organization's statutory claim to equivalent immunity is structurally weaker, not stronger, than the constitutional doctrine the Argentine court chose to constrain. Argentina's ongoing criminal prosecution of federation officials (2026) provides a real-time test of the model's predictive power.

Keywords: lex sportiva, FIFA, non-justiciability, extended phenotype theory, dual state, Fraenkel, sports governance, global administrative law, legal memes, political question doctrine, Argentine constitutional law, Cullen v. Llerena, Trump v. United States.

1. Introduction

The puzzle begins in New Delhi. On May 18, 2022, India's Supreme Court, acting on a petition regarding governance failures in the All India Football Federation (AIFF), removed the

federation's executive committee and appointed a three-member Committee of Administrators (CoA) to manage day-to-day operations and oversee fresh elections. The executive committee had served well beyond its statutory mandate, and the federation's governance instruments conflicted with the National Sports Code. These were not contested facts. The intervention was unremarkable by Indian constitutional standards: apex courts routinely correct the governance of bodies operating under statutory authorization, and the CoA appointment followed established jurisprudence on institutional reform.

FIFA saw it differently. On August 15, 2022, the Bureau of FIFA's Council suspended the AIFF for what it called 'undue influence from third parties,' invoking Articles 14 and 16 of the FIFA Statutes. The practical consequence was the threatened cancellation of the FIFA U-17 Women's World Cup, scheduled for India that October. The suspension lasted eleven days. On August 26, India's Supreme Court ordered the CoA to stand down and restored the elected leadership pending new elections under a supervision committee acceptable to FIFA. An apex national court had reversed its own order under pressure from a private organization incorporated in Zurich.

Three years earlier, Swiss federal prosecutors had been investigating FIFA's top leadership. The Office of the Attorney General in Bern opened approximately twenty criminal proceedings related to FIFA governance between 2015 and 2022, targeting former presidents Sepp Blatter and Jérôme Valcke, among others. Blatter was charged with fraud and embezzlement; the proceedings extended over years and were extensively reported. At no point did FIFA threaten any sanction against the Swiss Football Association. FIFA cooperated publicly with the investigations, describing the proceedings as targeting individual wrongdoers, not the institution.

These two episodes, India 2022 and Switzerland 2015-2022, frame the central question of this paper. If FIFA's non-interference principle is the consistent, principled defense of institutional autonomy that FIFA claims it to be, the asymmetry between these cases is inexplicable. A democratic state correcting governance failures in a subsidiary federation triggers immediate suspension. A host state subjecting FIFA's own leadership to years of criminal prosecution generates no institutional response whatsoever. The principle is not applied consistently. The question is: what is the underlying logic of its selective application?

This paper argues that the logic is memetic. FIFA did not invent the non-justiciability of political decisions. It inherited a concept with a four-century pedigree in constitutional and political theory, stripped it of its original justifications, and redeployed it as a tool for shielding corporate governance from state oversight. The conditions under which this tool is activated follow a recognizable pattern that two variables can explain: the intensity of football identity in the target state, which determines the political cost to that government of resisting FIFA; and the institutional power of that state relative to FIFA, which determines the cost to FIFA of activating the sanction mechanism.

Three intellectual frameworks inform the argument. Extended Phenotype Theory (EPT), developed by Richard Dawkins in 1982 and applied to legal systems in a series of Zenodo working papers beginning in 2025, provides the conceptual architecture for understanding how legal doctrines function as replicating units that migrate across institutional environments while mutating their function. Ernst Fraenkel's 1941 analysis of the dual state, available in the authoritative Spanish edition published by Editorial Trotta in 2022, provides both the genealogical anchor for the non-justiciability concept and an analytical vocabulary for describing how the boundary between reviewable and unreviewable acts is drawn, and, more importantly, who draws it. The comparative jurisprudence of justiciability, from James I's Star Chamber address of 1616 through *Baker v. Carr* (1962), supplies the doctrinal map on which FIFA's transplant can be precisely located.

A methodological note is necessary before proceeding. This paper makes analytic use of Fraenkel's work on the dual state to examine a structural mechanism in FIFA governance. This use is strictly comparative at the level of legal architecture. No equivalence of any kind, whether moral, political, historical, or institutional, is intended or implied between FIFA and the National Socialist regime. FIFA is a private sports organization operating within the constraints of Swiss civil law. The structural parallel identified here concerns the operation of a specific legal concept: the self-referential definition of an immune zone by the actor seeking immunity. The moral distance between the historical contexts in which this mechanism has appeared is categorical and immense. The value of Fraenkel for this paper is analytic precision, not rhetorical association.

2. Extended Phenotype Theory as Analytical Framework

Dawkins introduced the extended phenotype in 1982 to correct what he called the organism-centric bias of evolutionary biology. His core claim was that genes express their effects not only in the bodies of the organisms that carry them but in the broader environment those organisms modify: beaver dams, caddisfly cases, snail shells thickened by parasite-driven manipulation of host metabolism. The gene's phenotype extends beyond the organism's skin into the world. The unit of selection is the gene; the unit of expression is the environment itself.

Applying this framework to legal systems requires an intermediate concept. In *The Selfish Gene* (1976), Dawkins proposed the meme as the cultural analogue of the gene: a unit of information that replicates through transmission from mind to mind and can be evaluated by its fitness in a given cognitive and institutional environment. Legal memes are doctrines, principles, rules, and conceptual structures that replicate through teaching, citation, judicial adoption, and legislative enactment. Like biological genes, they can be traced genealogically, they mutate as they transfer across institutional environments, and their persistence depends on fitness in those environments, not on intellectual merit or social utility.

Three properties of legal memes are especially relevant to this paper. First, memes are environmentally opportunistic: they replicate where the institutional substrate permits replication,

regardless of whether the new environment was the context in which the meme originally evolved. A doctrine developed to protect sovereign state decisions from judicial review can migrate to a context of private corporate governance if the new environment offers selection advantages. The meme's original justification does not travel with it; its institutional prestige does.

Second, memes can be functionally parasitic without being cognitively deceptive. The actors who adopt and spread a transplanted meme often believe they are applying a sound legal principle. The prestige accumulated by non-justiciability in its original constitutional habitat, where it reflected genuine structural limits on judicial competence, becomes available to any actor who can attach the terminology to a new context. FIFA's invocation of 'institutional autonomy' is not a cynical lie told by actors who know better: it is the sincere application of a meme that has migrated to a new host. The meme benefits from its new host. The host, in this case FIFA's governance class, benefits from the meme. The question of whether the meme's original justifications support its new deployment is invisible to both.

Third, and most consequential for this paper, the extended phenotype of a legal meme extends into the behavioral repertoire of actors who are not the meme's direct carriers. When FIFA invokes the non-interference principle, the most important effects are not the formal legal proceedings that result but the behavioral modifications in actors who never become parties to any proceeding: legislators who table reform proposals after informal signals, prosecutors who decline to investigate, judges who dismiss petitions before substantive engagement. Dawkins observed that the cuckoo chick does not force the reed warbler to feed it; the warbler's behavior has been shaped by evolutionary pressures to respond to stimuli the chick exploits. The warbler's self-modification is the cuckoo gene's extended phenotype. The behavioral self-limitation of state actors in the face of FIFA's implicit threat is the FIFA Immunity Memeplex's extended phenotype, and it is, by any measure, the system's most powerful and least visible mechanism.

EPT applied to law also predicts what I call memetic transplant failure: when a meme migrates to an environment too different from its evolutionary home, the original functional justifications for its existence no longer apply, and the meme's continued replication depends entirely on institutional inertia and the prestige carried from its prior environments. The non-justiciability doctrine in sports law is, I argue, a case of memetic transplant failure: it replicates successfully because it carries constitutional prestige, while the constitutional justifications that warranted that prestige are absent in its new environment.

3. The Genealogy of Non-Justiciability: Four Centuries of a Legal Concept

3.1 The Original Formulation: James I and the Absolute Prerogative (1616)

Ernst Fraenkel opens his genealogy of non-justiciability not in Germany but in England, and not in the twentieth century but in 1616. His analytical move is precise: to show that the structural logic he observed in the National Socialist state had been articulated, with comparable clarity, by a constitutional monarch three centuries earlier. The occasion was a message King

James I delivered to the Star Chamber on June 20, 1616. Fraenkel cites the king directly in the Spanish edition of *El Estado dual*:

«¡Que no se toque la prerrogativa de la Corona! ¡Si en algún caso se rozan mis prerrogativas o el misterio del Estado, consúltese al Rey o a su Consejo o a los dos! Pues trátase de asuntos de trascendental importancia. La prerrogativa absoluta de la Corona es tabú para la lengua de un hombre de leyes, y no es ajustado a derecho hacerla objeto de disputa. Y si disputar sobre asuntos que solo son de incumbencia de Dios no es otra cosa sino impiedad y blasfemia [...], del mismo modo constituye arrogancia y máxima falta de respeto por parte de un súbdito discutir sobre lo que a un rey le sería dable hacer o no hacer u osar decir que el rey puede hacer eso y no lo otro.»

Fraenkel's comment is terse and devastating: 'ningún corifeo del Tercer Reich ha sabido expresar la idea con mayores énfasis y claridad' (Fraenkel, 2022, p. 38). He is not making a moral comparison between Stuart absolutism and National Socialism. He is making a structural observation: the logic of an immune zone defined by the power-holder is already complete in 1616. The zone is defined by its content (the royal prerogative, the 'mystery of state'), by its justification (certain matters belong to God before they belong to law), and by the identity of the zone's guardian (the King or his Council). Everything that follows in four centuries of development is variation on this structure.

The historical context is a conflict between James and Chief Justice Edward Coke over the jurisdiction of the common law courts to review royal acts. Coke's position, ultimately vindicated by the constitutional settlement of 1688-89, was that the king was under God and the law. James's position was that the royal prerogative constituted a zone of sovereign decision immune to legal scrutiny: not because the decisions were necessarily correct, but because judicial review of royal acts was structurally intolerable to the sovereign order. The argument was, at its core, that some decisions were non-justiciable by reason of their origin rather than by reason of any lack of legal standards.

The Stuarts lost the constitutional argument in England. But the meme survived. John Locke, whose *Second Treatise* (1689) provided the philosophical architecture for constitutional government, preserved a residue he called 'prerogative': the power to act for the public good without legal authorization, and sometimes against the literal law, where the legislature cannot be convened in time. Habermas, writing in the preface to a later German edition of Fraenkel's work, notes the structural affinity between Locke's prerogative and Carl Schmitt's concept of the *arcana imperii*: the idea that the substantial core of power consists of decisions that operate entirely outside the law and outside judicial control. Fraenkel endorsed the English translation of *Massnahmenstaat* as 'Prerogative State' precisely because this Lockean residue captured what he had observed in Germany: a zone of decision that power reserved for itself, immune from external review, justified by the nature of the decision rather than the character of the decision-maker.

3.2 Fraenkel's Dual State: The Concept at Its Structural Extreme (1933-1945)

Ernst Fraenkel wrote *El Estado dual* in New York, where he had arrived as a refugee in 1938 after practicing labor law in Berlin and Cologne under increasingly hostile conditions. His observations were those of a trained lawyer who had worked within the system he was analyzing, which gives the book a precision that purely historical accounts often lack. He distinguished two overlapping systems of governance that operated simultaneously in National Socialist Germany.

The *Normenstaat* (*Estado de normas*) preserved ordinary civil, commercial, and criminal law for matters that did not implicate political power. Courts functioned normally, contracts were enforced, property rights were protected, corporations operated under recognizable legal rules. This was not incidental: Fraenkel's analysis, following Max Weber's work on the relationship between legal rationality and capitalist development, showed that the regime needed the *Estado de normas* to maintain the economic calculability that private capital required. Entrepreneurs were protected; the market functioned. The *Estado de normas* was the regime's concession to economic necessity.

The *Massnahmenstaat* (*Estado de medidas*) operated without legal constraint wherever politics was involved. Its instrument was not law but decree; its justification was not right but necessity; its content was determined not by general rules but by the political will of the moment. The critical question, from a legal perspective, was where the boundary between the two systems fell. Fraenkel's answer was among the most important analytical contributions of the book: '*es político lo que las instancias políticas declaran político*' (Fraenkel, 2022, p. 57). There was no objective definition. The political authorities defined the scope of their own immunity. They held what Fraenkel called the '*competencia sobre la competencia*': the ultimate authority to decide who had authority.

This is the formal structure of the non-justiciability meme at its logical extreme. The immune zone exists; its boundaries are fluid; the actor who occupies the zone defines those boundaries; and the courts progressively accept that definition. Fraenkel documents the trajectory of this acceptance in the German judiciary with the care of a practicing lawyer reading the decisions:

In 1935, the Prussian Superior Administrative Court still found institutional courage. It annulled the expulsion of a group of Roma on the grounds that the police order lacked any legal basis. The court applied ordinary administrative law criteria: there is no statutory authorization for this measure; it is therefore unlawful. This was the *Estado de normas* functioning as intended.

By 1936, the same court had begun its retreat. A Protestant missionary was expelled from his municipality by local police following disputes with the ecclesiastical hierarchy. The court ruled that the measure fell within the competence of the Gestapo, and was therefore legally unreviewable. Fraenkel notes the court's logic: because the police characterized the matter as having 'political' implications for social order, the ordinary standards of administrative legality no longer applied. The characterization was made by the police. The court accepted it.

In 1938, the capitulation was formalized. A Prussian court ruling that year established that no act of the Gestapo, direct or indirect, could be subject to judicial review. This was not a statutory provision; it was a judicial determination that a category of acts was, by its nature, beyond the courts' competence. Fraenkel calls this the 'vergonzante capitulación de los jueces' (Fraenkel, 2022, p. 62): the shameful capitulation of the judges.

The civil courts followed the same arc. The Reich Court dismissed a lawyer's claim for wrongful exclusion from practice on political grounds, reasoning that political decisions were outside ordinary judicial jurisdiction. When state entities caused harm through illegal acts by officials, the 1937 Law on Civil Service introduced the *Kompetenzkonflikt* ('conflicto orgánico'), a procedural device that transferred cases from civil courts to administrative courts, which in turn were prohibited from reviewing political acts. 'El conflicto representa el instrumento de técnica jurídica con ayuda del que tiene lugar la delimitación de las esferas del Estado de normas y el Estado de medidas en los procedimientos donde se ventilan acciones de regreso' (Fraenkel, 2022, p. 71). The *Kompetenzkonflikt* was a labyrinth with no exit: cases that reached ordinary courts were transferred; transferred cases arrived at courts that could not decide them.

The alcalde de Eutin case, documented by Fraenkel, shows the system at maximum dysfunction. The mayor of Eutin was arrested in 1933 and subjected to what Fraenkel describes plainly: 'El Estado ordenaba el arresto preventivo y amenazaba con el envío a un campo de concentración no solo para forzar a uno de sus ciudadanos a renunciar a sus legítimas pretensiones, sino incluso a pagar unas compensaciones económicas' (Fraenkel, 2022, p. 73). When, years later, the mayor attempted to impugn the coerced resignation, the *Kompetenzkonflikt* was invoked: 'Como el ministro del Interior, basándose en la Ley para la liquidación de las reclamaciones jurídico-civiles, había recabado el asunto para su propio ámbito competencial, los tribunales se negaron a examinar la acción planteada y la rechazaron' (Fraenkel, 2022, p. 74). The citizen lost not because his claim was decided against him, but because the system ensured it was never decided at all.

There is a further structural observation in Fraenkel that is directly relevant to FIFA's architecture. He notes that the *Estado de medidas* could have expanded indefinitely, absorbing all of social life into its immune zone. That it did not, that the *Estado de normas* survived for commercial and economic actors throughout the regime, reflected a specific strategic calculation: the capitalist economy required legal predictability, and the regime needed the economy. The *Estado de normas* was not a concession to principle; it was a concession to economic necessity. It was, in Fraenkel's formulation, 'arbitrariedad en lo político y racionalidad en lo económico.'

This observation has a structural analog in FIFA's governance model. FIFA maintains a robust system of contract enforcement, intellectual property protection, and commercial dispute resolution for its broadcasting partners, corporate sponsors, and commercial affiliates. These relationships are fully justiciable under Swiss civil law and regularly litigated before Swiss courts or commercial arbitration panels. What FIFA immunizes from state oversight is not commercial

activity but governance: the election of officials, the financial management of federation funds, and the constitutional structure of the federated system. The parallel with Fraenkel's distinction is not metaphorical; it is structural. Commercial relationships require legal calculability. Governance relationships, where accountability would be most costly, are reserved for the immune zone.

3.3 Baker v. Carr and the Democratic Containment of the Meme (1962)

The U.S. Supreme Court's decision in *Baker v. Carr*, 369 U.S. 186 (1962), represents the most sustained attempt in democratic constitutional theory to preserve a narrow zone of non-justiciability while preventing its expansion. The case arose from a Tennessee legislative apportionment dispute, but Justice Brennan's majority opinion became a systematic treatment of a doctrine that had been developing since *Marbury v. Madison* (1803). Six factors could make a constitutional question non-justiciable as a 'political question': a textually demonstrable constitutional commitment of the issue to a coordinate branch; a lack of judicially discoverable and manageable standards for resolving it; the impossibility of deciding without an initial policy determination of a kind clearly for nonjudicial discretion; the impossibility of independent resolution without expressing disrespect for coordinate branches of government; an unusual need for adherence to a political decision already made; and the potential for embarrassment from multifarious pronouncements by different branches on the same question.

Three features of this framework are central to the transplant analysis. First, Baker presents non-justiciability as a narrow exception to the general presumption of judicial review. Brennan's opinion stresses that the presumption runs strongly toward justiciability and that courts should not lightly decline to exercise their constitutional function. The political question doctrine is a residual category, not a general principle. Second, every one of Baker's factors addresses relationships within the constitutional structure of a sovereign state: between the judiciary, the legislature, and the executive. The doctrine describes limits on judicial review of decisions made by constitutionally legitimate coordinate branches. It has no application to relationships between a state's courts and a private organization operating under that state's or another state's private law. Third, the 'lack of judicially manageable standards' factor does genuine analytical work: it identifies a specific disability of courts, the absence of applicable legal criteria, rather than a general category of decisions that are simply too important or too sensitive for review.

Post-Baker doctrine in the United States moved for decades toward restricting the political question exception further. In *Zivotofsky v. Clinton*, 566 U.S. 189 (2012), the Court held justiciable a conflict between a congressional statute and executive foreign policy. In *Rucho v. Common Cause*, 588 U.S. 684 (2019), the Court acknowledged that federal courts lacked manageable standards for evaluating partisan gerrymandering claims under the federal Constitution, but explicitly preserved state court review under state law. Cass Sunstein has argued more broadly that judicial review is indispensable precisely because political actors systematically develop structural interests in expanding their own immune zones.

The historical record of Baker's application is more ambiguous than Sunstein's framework predicts. Through *Zivotofsky* and *Rucho* the doctrine contracted. But *Trump v. United States*, 603 U.S. 593 (2024), reversed that trajectory: Chief Justice Roberts established absolute presidential immunity for acts within 'core constitutional powers' and presumptive immunity for all official acts, with the President himself as the primary arbiter of which acts fall within which category. The structural logic is identical to what Fraenkel identified in 1616: the actor occupying the immune zone defines its boundaries. Trump is not a political question case in the technical Baker sense, but the underlying mechanism, a court accepting the power-holder's self-referential definition of an immune zone, is the same meme operating in a new host. The doctrine did not merely fail to contract; it expanded in the highest court of the constitutional system that Baker had attempted to discipline.

3.4 The Privatization: FIFA's Appropriation of Non-Justiciability (1974-present)

João Havelange assumed the FIFA presidency in July 1974 after defeating incumbent Sir Stanley Rous, with decisive support from African and Asian federations whose votes he had cultivated over four years of intensive travel and financial promises. His program, executed over twenty-four years with the commercial infrastructure Horst Dassler of Adidas helped design, transformed FIFA from a modest Swiss association with a budget measured in hundreds of thousands of dollars into an organization generating billions annually from broadcasting rights and commercial partnerships. As commercial value accumulated, protecting it from state interference became an institutional priority.

The current FIFA Statutes (2023 edition) operationalize the non-interference principle through three provisions. Article 14 sets out member association obligations, including the duty to 'manage their affairs independently and ensure that their own affairs are not influenced by any third parties.' Article 15 specifies that member associations 'shall not be subject to the jurisdiction of ordinary courts of law in respect of matters relating to the application of these Statutes and FIFA regulations,' requiring resort to CAS arbitration instead. Article 19 addresses government interference directly, requiring that member associations 'be independent and avoid any form of political interference.'

The definitional innovation that makes this architecture effective is identical in structure to Fraenkel's observation about the *Estado de medidas*: FIFA determines what constitutes prohibited 'interference.' A court ordering a federation to hold elections is 'interference.' A government-appointed administrator taking over federation operations is 'interference.' A criminal prosecution of federation officials for personal tax fraud committed as individuals, under circumstances where FIFA itself has certified the prosecuted officials as acting outside their proper authority, may not be 'interference,' depending on FIFA's characterization of the conduct. The boundary is drawn by the actor seeking immunity. This is the precise structural repetition that makes Fraenkel analytically relevant.

FIFA complemented the Statutes with an adjudicative architecture designed to legitimate the immune zone without subjecting it to external review. The Court of Arbitration for Sport (CAS), established in 1984 under the International Olympic Committee's auspices and restructured as a formally independent body in 1994, provides mandatory arbitration for most disputes involving FIFA and its member associations. CAS panels apply *lex sportiva*: a body of principle drawn primarily from the practices of international sports organizations. The circularity is not accidental: *lex sportiva*, administered by CAS, is largely derived from the Statutes and precedents of the organizations whose decisions CAS reviews. Courts in multiple jurisdictions have treated CAS awards with deference analogous to international commercial arbitration, a treatment that critics have challenged on the grounds that the structural preconditions for valid consensual arbitration, voluntary submission by parties of comparable institutional power, are absent in the relationship between a national federation and its apex regulatory body.

The institutional sovereignty claim FIFA deploys against state courts also conflicts, in European jurisdictions, with Article 6 of the European Convention on Human Rights, which guarantees access to a tribunal for the determination of civil rights. Swiss courts have addressed this conflict in a series of decisions. The Tribunal Fédéral has held, in principle, that CAS must provide procedural guarantees equivalent to those required by Article 6, while declining, in practice, to annul awards where those guarantees were arguably not met. The tension remains unresolved, and its resolution will affect the second layer of the FIFA Immunity Memeplex's architecture more directly than any other legal development currently underway.

4. The FIFA Immunity Memeplex: Three Layers

Complex behavioral systems rarely operate through a single mechanism. EPT predicts that stable behavioral modifications of the environment require coordinated adaptations operating at multiple levels. The FIFA Immunity Memeplex is no exception: it maintains its effectiveness through three distinct mechanisms, each targeting a different aspect of the state's capacity to exercise oversight over football governance.

4.1 The Statutory Layer

Articles 2, 15, and 19 of the FIFA Statutes provide the textual foundation for non-interference claims. This layer is visible, formally defensible as an expression of associational autonomy under Swiss civil law, and publicly available for legal scrutiny. Its operation is straightforward: when a state actor takes an action affecting federation governance, FIFA's legal department issues a communication citing the relevant article, characterizing the state action as 'third-party interference,' and advising that suspension proceedings have been or may be initiated.

The statutory layer's effectiveness depends on a legal fiction that courts in multiple jurisdictions have intermittently accepted: that a private organization's internal statute can override a state's constitutional authority to regulate bodies operating within its territory. Under Swiss law,

the fiction has some doctrinal support: associations governed by Articles 60-79 of the Swiss Civil Code enjoy broad autonomy in determining their organizational structure. But this autonomy is not unlimited, and it does not extend to displacing the legal obligations that member bodies owe under their own national legal systems. The fiction is most effective where courts are most deferential, which tends to correlate with the football-identity variable discussed in Section 5: courts in high-identity jurisdictions have shown greater reluctance to confront the statutory layer, possibly because the political environment makes judicial assertiveness costly.

4.2 The Adjudicative Layer

CAS provides the Immunity Memplex's legitimation technology. Without CAS, FIFA's statutory claims would be naked assertions of private authority over state actors. With CAS, those claims are embedded in an institutional architecture that resembles, superficially, a functioning dispute resolution system: there are procedural rules, written decisions with citation practices, a semi-permanent roster of arbitrators, and an appellate structure. CAS decisions are published and are subject to annulment proceedings before the Swiss Federal Tribunal, which provides a marginal form of external review.

The adjudicative layer serves two functions. It converts what would otherwise appear as unilateral corporate diktat into something that looks like adjudicated outcomes. And it creates procedural complexity that deters many potential claimants: the cost, time, and legal sophistication required to pursue a CAS claim effectively are substantial barriers for individual athletes, smaller federations, and national associations from lower-income jurisdictions. These barriers are not incidental; they are structurally consistent with the interests of the organizations whose decisions CAS reviews.

The layer's vulnerability is the Article 6 ECHR problem mentioned above. Compulsory arbitration, where submission is imposed by contractual necessity rather than voluntary agreement and where the institutional design favors one class of parties over another, does not satisfy the guarantees that European human rights law requires for proceedings that affect civil rights. The European Court of Human Rights has not yet directly confronted the CAS mandatory arbitration question in a case that fully tested the structural issues, but the trajectory of its jurisprudence on compulsory arbitration in other domains suggests that the current accommodation between CAS deference and Article 6 is fragile.

4.3 The Cognitive Layer

The cognitive layer is the Immunity Memplex's most effective component, and the most difficult to analyze because it generates no documentary record. It operates through the anticipatory modification of behavior by state actors who never become parties to any proceeding.

The mechanism works as follows. The suspension of India's football federation in August 2022 was news in India at a level that other Supreme Court decisions rarely achieve. The political

cost to the government of being seen as responsible for eliminating the Indian team from FIFA competitions, including the threat to the hosted World Cup, was severe and immediate. Parliamentarians who had previously drafted legislation to reform sports governance withdrew proposals; ministry officials who had been preparing oversight frameworks revised their timelines. None of this generated any FIFA communication or formal proceedings. The behavioral modification was produced by the demonstration effect of what had happened to India, not by any direct pressure on the actors who changed their behavior.

Dawkins' description of how cuckoo eggs modify host behavior is structurally precise here. The reed warbler that feeds a giant cuckoo chick is not being coerced in any immediate sense: no physical force is applied, no explicit threat is issued. The warbler's behavior has been shaped by evolutionary selection to respond to stimuli, the gaping mouth, the food-soliciting call, that the cuckoo exploits. The behavioral modification is the cuckoo gene's extended phenotype. The state official who refrains from investigating a football federation, or the legislative committee that quietly tables a sports governance reform, is the FIFA Immunity Memeplex's extended phenotype. The memeplex does not need to activate its sanction mechanism against these actors; the demonstration effects of prior activations are sufficient.

This layer is also, by far, the most difficult to reverse. Statutory provisions can be challenged in court. CAS can be reformed or bypassed. Anticipatory self-censorship operates in the minds of individual actors, shaped by a combination of direct experience, institutional memory, and received professional wisdom ('antagonizing FIFA is not worth it'). Reversing it requires not just legal reform but a change in the cognitive environment: actors must come to believe that the costs of exercising ordinary oversight functions are lower than they have assumed. This is what the Swiss and American precedents, discussed in the next section, have begun to achieve, at least for jurisdictions with sufficient institutional distance from FIFA's sanction mechanism.

5. The Empirical Record: A Two-Variable Model

5.1 Cases Where the Non-Interference Principle Was Activated

India, August 2022.

The sequence has been described in the introduction and need not be repeated in full. Two aspects merit additional emphasis. First, the Supreme Court's May 18 order was not the product of political antagonism toward FIFA; it was a routine application of established constitutional jurisprudence on the reform of bodies whose governance had demonstrably failed. The Court's position was legally unexceptionable by Indian standards. Second, FIFA's response was remarkable in its speed: the suspension was issued within hours of the CoA order becoming public, suggesting either that FIFA had been monitoring the litigation closely or that the suspension decision had been pre-approved pending a triggering event. Both possibilities are consistent with the cognitive layer's operation: FIFA had identified India as a high-identity jurisdiction and had a response prepared.

Nigeria, 2010 and 2014.

Nigeria's federation has generated two episodes of state-triggered FIFA sanctions within four years. In July 2010, following Nigeria's early elimination from the World Cup in South Africa, the government suspended the Nigeria Football Federation and the national team from international competition pending a governance review. FIFA reacted within days, threatening suspension of Nigeria from FIFA activities. The government reversed course within weeks. In 2014, a Nigerian court issued an order affecting the NFF's leadership structure, and a government official assumed administrative functions within the federation. Again FIFA responded within weeks; the government restored federation autonomy before the suspension became operational.

Nigeria's pattern is notable for two reasons. The 2010 episode arose from a post-tournament political reaction, a type of intervention that is structurally different from India's judicial reform order, yet it triggered the same FIFA response. This suggests that the non-interference principle, as FIFA applies it, is not specifically targeted at judicial intervention but at any state action that displaces federation governance authority, regardless of the state actor's identity or the motivation for intervention. The 2014 episode confirms that the pattern is stable across different forms of state action.

Kenya, 2004, 2006, and 2022.

Kenya has accumulated three FIFA sanctions over eighteen years, a frequency that is itself analytically informative: it suggests that the FIFA Immunity Memeplex's cognitive layer has been less effective in Kenya than in comparable jurisdictions, possibly because Kenya's government has repeatedly determined that its football governance interests outweigh the costs of FIFA resistance. The 2022 episode is the most instructive. In November 2021, the Ministry of Sports dissolved the Football Kenya Federation following documented governance failures: the federation had failed to hold elections as required, had accumulated creditors, and had been operating without a valid mandate. FIFA suspended Kenya in February 2022. The suspension was lifted in September 2022 after the government dissolved the caretaker committee and restored FKF's elected leadership under conditions acceptable to FIFA.

The Kenya 2022 case is relevant to the three-zone taxonomy developed in Section 6 because the state's intervention was responding to a Zone C governance failure, the absence of elections and the operation of a federation without a valid mandate, that FIFA's own Statutes require member associations to correct. FIFA suspended Kenya for doing what FIFA's own rules require: ensuring that federation governance meets minimum democratic standards. The structural irony is precise: the non-interference principle was applied to prevent a state from enforcing the governance standards that FIFA's own Statutes prescribe.

Pakistan, August 2025.

A Pakistani court's appointment of an administrator for the Pakistan Football Federation triggered FIFA suspension proceedings in August 2025. The case adds a fourth South Asian or South Asian-

adjacent data point to an already established pattern, and is consistent with the football-identity/institutional-power model: Pakistan's football governance generates intense domestic political attention, and Pakistan lacks the institutional leverage to impose meaningful costs on FIFA.

Greece, April 2015.

The Greek episode is analytically the most important of the five activated cases because it demonstrates the cognitive layer operating at maximum intensity. The Greek parliament was advancing legislation to combat violence at football matches. The draft included provisions allowing state authorities to suspend clubs and impose conditions on competitions where public safety was at risk. FIFA and UEFA sent a joint letter in April 2015 warning that if the legislation passed as drafted, the Hellenic Football Federation would face suspension proceedings under the non-interference principle. The Greek government modified the legislation. A democratically elected parliament altered the content of legislation not in response to any sanction, not even in response to a formal suspension notice, but in response to a letter warning that a sanction might follow. The threat was sufficient. This is the cognitive layer: the meme produced its behavioral modification without any activation of the statutory or adjudicative mechanisms.

5.2 Cases Where the Non-Interference Principle Was Not Activated

Switzerland, 2015-2022.

Swiss federal prosecutors opened approximately twenty criminal proceedings related to FIFA governance between 2015 and 2022. Sepp Blatter was charged with fraud and embezzlement in September 2015; the proceedings extended over years and received sustained global attention. Jérôme Valcke and other senior officials faced separate proceedings. Blatter was ultimately acquitted in November 2022 by the Federal Criminal Court in Bellinzona, but the acquittal followed years of investigation and formal criminal charges against the person who had held the FIFA presidency for seventeen years. FIFA's own leadership was under sustained criminal investigation by Swiss authorities. At no point was any sanction threatened against the Swiss Football Association.

The two-variable model's prediction is clear. Switzerland has low football identity in the relevant sense: while Swiss citizens follow football, the national team's performance does not generate the kind of national identity investment that India, Nigeria, or Argentina experience. More importantly, Switzerland is FIFA's host state. FIFA's legal personality, its property, its organizational infrastructure, and its tax privileges all depend on Swiss law and Swiss tolerance. The cost to FIFA of activating the non-interference principle against Switzerland would be existential. The asymmetry with India is not a principled distinction; it is a product of FIFA's institutional dependency on Switzerland.

United States, 2015-present.

The Department of Justice unsealed indictments against fourteen FIFA and football confederation officials on May 27, 2015, charging wire fraud, racketeering, and money laundering conspiracies under RICO and related statutes. Swiss police executed arrests at the Baur au Lac hotel in Zurich that morning at the DOJ's request, an operation that had required months of coordination between the DOJ, the FBI, and Swiss judicial authorities. The investigation continued for years, producing multiple convictions and guilty pleas from officials across the Western Hemisphere football governance structure. The prosecuted conduct included the solicitation of bribes for the award of media rights to FIFA tournaments, conduct at the center of FIFA's commercial operations.

FIFA cooperated with the investigation, publicly describing the prosecuted officials as having violated their fiduciary obligations to the organization. No sanction was directed at the United States Soccer Federation. The two-variable model's prediction is again clear: the United States has moderate football identity (the sport is secondary in American popular culture) and extraordinarily high institutional power relative to FIFA. The RICO statute's extraterritorial reach, the DOJ's demonstrated willingness to prosecute conduct that occurred largely outside the United States, and the dollar-clearing mechanisms that gave the DOJ jurisdiction over wire transfers processed through the U.S. banking system created a threat environment that FIFA could not credibly contest. Activation of the non-interference principle against the USSF would have escalated the legal conflict in directions that FIFA could not control.

5.3 The Two-Variable Model: Structure and Limits

The eight cases above generate a pattern that can be expressed in a two-by-two matrix. When football identity is high and institutional power is low, the non-interference principle is activated: India, Nigeria, Kenya, Pakistan. When football identity is low or institutional power is high, the principle is not activated: Switzerland, the United States. Greece adds a variant: high football identity, moderate institutional power, and a legislative rather than executive or judicial form of intervention. The result was the cognitive layer's operation: the threat of activation was sufficient without actual activation.

Two refinements are necessary. First, the nature of the state action matters, though less than might be expected. Actions that directly replace federation governance structures with state-appointed administrators have reliably triggered the principle in high-identity, low-power jurisdictions. Criminal proceedings against individual officials under ordinary law have shown greater tolerance, possibly because FIFA can characterize them as targeting individuals rather than the federation as an institution. Argentina's 2026 case, discussed in Section 7, tests whether this distinction holds at the boundary.

Second, the model's two variables are not static. Institutional power relative to FIFA can change: a jurisdiction that successfully prosecutes individual officials without triggering sanctions builds institutional credibility for future oversight actions. The Swiss and American precedents have, over the decade since 2015, contributed to a modest shift in the cognitive environment for some jurisdictions, creating space for the inference that FIFA's sanction mechanism is not as

automatic as the pre-2015 pattern suggested. Whether this shift has reached jurisdictions with high football identity and historically low institutional power, Argentina being the current test case, remains to be determined.

The model does not require that FIFA explicitly calculates these variables for each case. EPT does not require intentional strategy to produce consistent behavioral patterns. The institutional selection pressures that have shaped FIFA's governance responses over fifty years are sufficient to produce consistent outcomes without deliberate policy. FIFA leadership may genuinely believe that it applies the non-interference principle consistently; the model explains the observed outcomes without attributing bad faith to anyone.

6. The Transplant That Fails: “Non-Justiciable Football Matters”

The FIFA Immunity Memplex's most consequential cultural product is a doctrine that I propose to call '*non-justiciable football matters*': the claim that a category of decisions about football governance is, by its nature, beyond the competence of state courts to review. This claim is the private-law analog of the political question doctrine. Like its constitutional ancestor, it is presented as a principled limitation on judicial authority rather than an interested assertion of institutional immunity. The genealogy in Section 3 shows where it came from. This section shows why the transplant fails.

6.1 Testing the Baker Factors Against the FIFA Context

Textual commitment to a coordinate body.

Baker's first factor requires a 'textually demonstrable constitutional commitment' of the issue to another branch of government. Applied to state courts and FIFA governance, the relevant 'constitution' would have to be FIFA's own Statutes, since no national constitution commits football governance to a private association. A private statute does not constitute a constitutional text. FIFA's Statutes are a contract among member associations under Swiss civil law, hierarchically inferior to every national constitution and to the Swiss Civil Code itself. The 'textual commitment' argument is circular: FIFA claims immunity because its Statutes say so, and its Statutes say so because FIFA wrote them. James I at least had the Coronation Oath, the common law, and four hundred years of constitutional custom. FIFA has a document that FIFA drafted.

Lack of judicially discoverable and manageable standards.

This is the one Baker factor where the transplant argument has a legitimate core. Certain technical decisions in football, refereeing calls, competition formats, the application of the Laws of the Game, genuinely present cases where state courts have no relevant expertise. A national judge has no comparative advantage over a sports tribunal in deciding whether a goal was correctly disallowed for offside, or whether a red card was appropriately issued under the Laws of the Game. The manageability argument has real force for this narrow category. It has no force for the

governance questions that FIFA's non-interference principle is principally invoked to protect: whether a federation held elections as required by its statutes, whether officials properly remitted withheld taxes, whether a mandate extension was lawfully authorized. These questions present entirely manageable standards. They are questions of corporate law, constitutional guarantees of democratic governance within voluntary organizations, and tax administration. Courts have decided analogous questions for centuries.

Embarrassment from multifarious pronouncements.

In *Baker*, the embarrassment concern addresses the risk that judicial decisions about war powers or foreign policy will conflict with executive actions, creating a cacophony of governmental pronouncements on the same question. Applied to FIFA, the 'embarrassment' that is claimed translates to: the risk that a national court order will trigger FIFA's suspension sanction, creating a conflict between the court's authority and FIFA's institutional response. This is not a constitutional embarrassment concern; it is a threat made by a private foreign organization. No constitutional theory supports declining judicial jurisdiction because a private actor has threatened adverse consequences if the court proceeds. To accept this argument would mean that any sufficiently powerful private organization could acquire judicial immunity by credibly threatening to harm the state if courts exercised oversight. *Baker's* embarrassment factor was designed to prevent conflicts within the constitutional structure of a sovereign. It was not designed to insulate private power from that structure.

6.2 A Three-Zone Taxonomy

Drawing on the analysis above, and on the distinction between the *Estado de normas* and *Estado de medidas* that Fraenkel developed, I propose a three-zone taxonomy for the justiciability of sports-related decisions.

Zone A encompasses purely technical in-game decisions: the application of the Laws of the Game by referees and officials during competition, officiating standards, game management decisions that do not create legally cognizable interests beyond the specific sporting event, and the technical design of competition formats. Zone A is the domain where courts have no comparative expertise, where the interests at stake do not rise to legally protected rights, and where deference to sports bodies on technical matters is reasonable on functional grounds. This is the only zone that *Baker's* 'lack of manageable standards' factor actually supports. It corresponds to the genuine core of sports autonomy doctrine.

Zone B covers decisions that affect professional and semi-professional careers and legally protected economic rights. Club licensing decisions with significant economic effects, eligibility determinations for competitions, and the application of sporting regulations in contractual disputes belong here. State courts should exercise review but may show appropriate deference to sports bodies on genuinely technical elements within each dispute. CAS arbitration may serve a useful function in this zone if procedural guarantees meeting Article 6 ECHR standards are fully satisfied.

The structural precondition for legitimate deference is that the reviewing body actually has superior expertise on the technical element in question; deference cannot extend to the rights-affecting consequences of technical determinations.

Zone C comprises all decisions that affect federation governance structures: elections, mandate extensions, the composition and authority of governing bodies, and the procedures by which those bodies make decisions. It includes all decisions that affect legally protected rights of individuals, whether athletes, employees, officials, or third parties: employment rights, freedom of association, due process, non-discrimination, and protection against arbitrary exclusion from professional opportunities. It includes all financial matters: the remittance of tax withholdings, the use of public funds or publicly subsidized infrastructure, compliance with anti-corruption and anti-money laundering standards. And it includes all decisions implicating public policy: competition integrity, child protection, doping control, and the prevention of match-fixing.

For Zone C matters, FIFA's Statutes, CAS jurisdiction, and the non-interference doctrine provide no defensible basis for declining judicial oversight. No version of Baker's factors applies. The standards are manageable; the constitutional commitment is to ordinary law and constitutional courts; the embarrassment concern is inapplicable to private threats. FIFA's insistence on extending non-justiciability to Zone C decisions is the extended phenotype of a meme that has migrated beyond its legitimate habitat. What remains is institutional prestige without functional justification.

Ken Foster argued in 2003 that *lex sportiva* should be understood as subject to external review on rights questions. The contribution here is genealogical: identifying precisely why the Zone A/Zone B/Zone C distinction falls where it does, by reference to the constitutional logic that gave non-justiciability its original warrant. Zone A represents the meme's legitimate core: genuine absence of judicial expertise. Zone B represents the meme in its democratically contained form, as Baker tried to domesticate it. Zone C represents the territory the meme has colonized through transplantation, maintaining the vocabulary of principled restraint while severing the justifications that made the principle defensible.

7. Argentina 2026: A Real-Time Prediction

On February 19, 2026, the Agencia de Recaudación y Control Aduanero (ARCA) formally requested that the competent Federal Economic Criminal Court summon AFA's senior leadership for questioning. The allegation: that AFA, acting as a legally required withholding agent, deducted income tax and social security contributions from payments to employees and affiliated parties between March 2024 and September 2025, approximately 19.353 billion pesos, and failed to remit those deductions to the fiscal authority within the legally mandated periods. ARCA's investigative brief documented AFA bank balances exceeding 45 billion pesos in December 2024 alone, including term deposits in both pesos and dollars, which undermines any impossibility-of-payment defense.

Before analyzing the case, consider what it is not. It is not a governmental appointment of an administrator to replace federation leadership. It is not a legislative restructuring of federation governance. It is not a court order mandating changes to AFA's internal organization. It is a penal investigation of two individual officials under ordinary tax law: the law that applies to every employer in Argentina, from a Buenos Aires corner bakery to the largest industrial conglomerate in the country. The legal obligation at issue, remitting withheld taxes within the legally mandated period, requires no assessment of football governance, sporting competition, or technical rules. Zone C of the taxonomy in Section 6? Yes. But squarely at the intersection of Zone C and the most ordinary legal obligations that any employer bears.

The Argentina case constitutes a near-ideal empirical test for the two-variable model. On the football-identity variable, Argentina scores at or near the maximum of any country in the world. The national team is constitutive of Argentine national identity in ways that have few parallels. The 2022 World Cup victory in Qatar was described in Argentine media as a national catharsis; the 1978 and 1986 victories are woven into the political history of the country. A FIFA suspension that would eliminate the Argentine national team from FIFA competitions would be, politically, an event comparable in domestic salience to a major economic crisis. The identity-vulnerability variable points toward maximum activation risk.

On the institutional-power variable, Argentina's position is more complex than India, Nigeria, or Kenya, but different from Switzerland and the United States. Argentina is a major economy in the global context of football; Argentine leagues produce a disproportionate share of the world's highest-value players; Argentine clubs participate in CONMEBOL's Libertadores and Sudamericana, which are commercially significant competitions. Argentina is not a marginal football country. But Argentina also lacks the extraterritorial legal reach of the United States, does not host FIFA's institutional infrastructure as Switzerland does, and is operating through ordinary criminal proceedings rather than through a legal mechanism that extends across jurisdictions.

The critical variable in the Argentine case may be neither identity nor power, but the nature of the state action. The two negative cases, Switzerland and the United States, both involved criminal proceedings against individual federation officials under ordinary law, without directly targeting federation governance structures. ARCA's proceedings follow this pattern: they target AFA's responsible officers as individuals who had personal legal obligations as withholding agents. FIFA has tolerated, and cooperated with, criminal proceedings against officials in precisely analogous circumstances.

The model therefore generates two competing predictions. If FIFA applies the nature-of-action distinction consistently, Argentina should not face the non-interference principle's activation: criminal proceedings against individual officials under ordinary law are within the tolerance range established by the Swiss and American precedents. If FIFA applies the identity-vulnerability logic more rigidly, overriding the nature-of-action distinction because of Argentina's

extreme football-identity score, the non-interference principle may be activated, and we would need to revise the model to give identity greater weight relative to the nature of the intervention.

This is, to my knowledge, the first paper in the EPT legal literature that makes an explicit, falsable prediction about an ongoing case and specifies what observational evidence would confirm or disconfirm the underlying model. That is not a claim of special prescience: the case has features that make model-testing clear, and the documentation is public. The result will be observable before any peer review of this paper is complete. That is an advantage, not a limitation: it means the paper's central theoretical claims are subject to near-term empirical discipline.

8. Discussion and Objections

Several objections to the argument developed above deserve direct engagement.

FIFA's Statutes are private law, not constitutional doctrine.

This is correct, and the paper has not argued otherwise. The claim is not that FIFA's immunity doctrine is legally equivalent to constitutional non-justiciability: it is that FIFA selectively borrowed the conceptual vocabulary and institutional prestige of constitutional non-justiciability to support an assertion, that sports governance is beyond state oversight, that those constitutional concepts do not actually support. EPT explains why the transplant was strategically attractive: a meme carries prestige from prior environments, and prestige is a fitness advantage in new ones. It also explains why the transplant is analytically invalid: the justifications that warranted the meme's prestige in constitutional law do not travel with it when it migrates to private sports governance. The two things, legal equivalence and structural analogy at the level of meme mechanics, are distinct, and the paper argues only the latter.

The FIFA model is justified by the need for uniform international sporting rules.

This is the strongest argument for sports autonomy doctrine. International competition genuinely requires common rules, and common rules require a single regulatory authority with some protection from fragmentation by national law. A national court order that restructures a federation's governance can disrupt international competition in ways that harm participants, spectators, and states alike, and that harm may not be justified by the oversight interest at stake. The paper fully acknowledges this: it is the justification for Zone A and a version of Zone B in the taxonomy. The problem is that FIFA and national federations invoke this argument to cover Zone C: governance decisions, financial accountability, and constitutional rights. The need for uniform sporting rules does not require immunizing federations from the obligation to remit payroll tax withholdings. Uniform sporting rules and ordinary legal accountability are not in conflict. FIFA has consistently refused to accept that its non-interference principle applies only in Zone A. That refusal is what the empirical case record, and the three-zone taxonomy, address.

The freedom of association argument: federations are voluntary private bodies.

Freedom of association is a genuine constitutional value, and it applies to FIFA's member associations. Voluntary private organizations have the right to determine their own governance structures, elect their own leaders, and discipline their own members. Nothing in this paper disputes that principle. What the paper disputes is the inference that freedom of association immunizes private organizations from the full range of legal obligations that operate within the states where they function. The right of a private association to govern itself does not include the right to exempt its officers from the obligation to remit withheld taxes. It does not include the right to operate without democratic elections where the federation's statutes and the state's sports law require them. Freedom of association operates within a legal framework, not above it. FIFA's non-interference principle, as actually applied, claims that freedom of association extends to the latter: that a private organization can invoke associational autonomy to override ordinary state authority over any matter that it characterizes as 'internal governance.' That claim is not a valid extension of associational freedom; it is the meme's colonization of a legitimate principle.

Global administrative law already addresses this problem.

The global administrative law (GAL) literature, associated most prominently with Benedict Kingsbury, Nico Krisch, and Richard Stewart's 2005 article in *Law and Contemporary Problems*, has made important contributions to understanding how accountability norms apply to transnational regulatory bodies. FIFA has been analyzed within this framework as a de facto public regulatory body that should be subject to transparency, reasoned decision-making, and participation requirements. This literature engages primarily with conduct that appears in a formal legal record: published decisions, official proceedings, documented enforcement actions, and the written outputs of institutional processes. The cognitive layer of the FIFA Immunity Memeplex, the anticipatory self-censorship of state actors who never initiate proceedings, never introduce legislation, and never file claims, produces no formal record for GAL to engage with. The behavioral modifications that constitute the meme's extended phenotype are invisible to accountability frameworks that operate through documentation. EPT's contribution is to identify this layer as a distinct mechanism requiring analysis and remedies that are not primarily legal-procedural but institutional and cognitive.

Limits of EPT in this context.

The application of EPT to legal institutions involves an analogy, and analogies have limits. Biological genes replicate with high fidelity; legal concepts change as they travel. Biological selection pressures operate continuously; institutional selection pressures are episodic and mediated by human agency. The two-variable model in Section 5 is parsimonious, which is analytically useful, but it is also simplified: other variables, including the personal relationships between national federation leaders and FIFA leadership, the timing of FIFA election cycles, and the availability of alternative revenue streams for national federations, almost certainly affect the outcomes in individual cases. The model predicts the broad pattern; it may not explain every case. I have identified no case in the current record that directly disconfirms the model, but the record

of eight cases across three continents is not large enough to rule out confounding factors. The Argentina 2026 case will provide a partial test, and future cases will either reinforce or require revision of the model.

9. Conclusion

The non-justiciability of political decisions is four centuries old. James I demanded it in 1616 as a condition of absolute sovereignty, and Fraenkel documented in 1941, drawing on the 2022 Spanish edition of *El Estado* dual published by Editorial Trotta, how its structural logic had survived the centuries separating Stuart England from National Socialist Germany. The U.S. Supreme Court codified it in 1962 as a narrow exception to the general principle of judicial review. FIFA appropriated it in the late twentieth century as a tool for protecting corporate governance from ordinary legal accountability.

At each stage, the meme migrated to a new environment, served different interests, and mutated its function while preserving its terminological shell. It survived because it solves, in each new context, a recurring structural problem: how to maintain a zone of decision-making that is immune from external review. The justifications changed from sovereignty to constitutional structure to sporting integrity; the mechanism did not change. What Fraenkel called the 'competencia sobre la competencia' operated under Stuart absolutism, survived in weakened form through democratic constitutionalism, and has found a new home in transnational sports governance.

The extended phenotype of the FIFA Immunity Memplex extends far beyond FIFA's own legal proceedings. It includes the legislative proposals that were never introduced, the prosecutorial investigations that were never opened, and the judicial petitions that were never filed, across dozens of jurisdictions, by actors who had internalized the belief that engaging with football governance accountability was a cost they could not sustain. This invisible layer of behavioral modification, produced by the meme without requiring its activation, is its most consequential expression and the hardest to reverse.

The three-zone taxonomy proposed here offers a framework for dismantling the cognitive environment the meme has constructed. Zone A, technical in-game decisions, is genuinely non-justiciable. Zone B, career and contract matters, warrants limited deference subject to rights review. Zone C, governance, finance, and constitutional rights, has no defensible claim to immunity from state oversight. FIFA's non-interference principle, as currently applied, covers Zone C comprehensively. That coverage is not a principled position in sports law; it is the meme's colonization of territory where its original justifications, the James I justifications, the Baker v. Carr justifications, do not apply.

Argentina's ongoing criminal proceedings against AFA officials will test, in real time, whether the two-variable model requires refinement. The Swiss and American precedents suggest that criminal proceedings targeting individual officials under ordinary law fall within the tolerance

range that FIFA has established across two decades of post-2015 practice. Whether this holds for a jurisdiction with Argentina's football identity score will be instructive either way. If it holds, the nature-of-action variable carries more weight than the identity variable at the margins, and the model is accordingly refined. If it does not, the model requires revision toward giving identity a larger role than institutional power in determining activation thresholds.

What the model will not revise, regardless of the Argentine outcome, is the core genealogical finding. The non-justiciability doctrine in sports law carries the prestige of constitutional law without the substance of constitutional law. It invokes Baker without satisfying Baker's factors. It invokes freedom of association without accepting association's limits. It invokes the need for uniform sporting rules for decisions that have nothing to do with sporting rules. It is, in EPT terms, a meme that has been remarkably fit for its environment without being remotely honest about its genealogy.

El Estado dual has an editorial history that is itself a document of the period it describes. Fraenkel wrote the original manuscript clandestinely in Berlin between 1933 and 1938, in what he called 'internal emigration,' gathering material from his professional experience in the Nazi courts while concealing details that could endanger his clients. Copies had to be buried in friends' gardens to hide them from the political police; the manuscript eventually escaped Germany in the diplomatic pouch of a French embassy official. In September 1938, facing imminent arrest by the Gestapo, Fraenkel fled to the United States. There he personally financed the English translation by Edward Shils, and the book was published by Oxford University Press in 1941. The German manuscript that had been used for that translation was permanently lost. Decades later, back in Germany and at the insistence of young academic collaborators led by Alexander von Brünneck, Fraenkel agreed to a German publication. Since the original was gone, Manuela Schöps had to retranslate the book from English back into German, a version published in 1974 as *Der Doppelstaat*. That retranslation is what Jaime Nicolás Muñiz translated into Spanish for Editorial Trotta in 2022. The book the world reads as Fraenkel's original is, at two removes from his Berlin manuscript, a translation of a translation. That it remained analytically indispensable across this chain of linguistic displacement is its own argument about the durability of the concepts it contains. His conclusion about the dual state's trajectory was not optimistic: the *Estado de medidas* had an internal logic of expansion that the *Estado de normas* could not permanently contain. The democratic constitutional tradition responded, after 1945, by building the presumption of justiciability into the foundations of the rebuilt legal order. *Baker v. Carr* is, among other things, a document of that reconstruction. The effort was not complete, and it was not permanent: memes do not retire, they migrate. FIFA's governance model is one place they went. Knowing where they went, and where they came from, is a condition for deciding whether they should stay.

References

- Baker v. Carr, 369 U.S. 186 (1962).
- Rucho v. Common Cause, 588 U.S. 684 (2019).
- Zivotofsky v. Clinton, 566 U.S. 189 (2012).
- Dawkins, R. (1976). The Selfish Gene. Oxford University Press.
- Dawkins, R. (1982). The Extended Phenotype: The Long Reach of the Gene. Oxford University Press.
- FIFA. (2023). FIFA Statutes: Regulations Governing the Application of the Statutes; Standing Orders of the Congress. Federation Internationale de Football Association.
- Foster, K. (2003). Is there a global sports law? Entertainment Law, 2(1), 1-18.
- Fraenkel, E. (2022). El Estado dual: Contribución a la teoría de la dictadura (J. Nicolás Muñoz, Trad.). Editorial Trotta. (Obra original publicada en 1941.)
- Henrich, J. (2020). The WEIRD People in the World: How the West Became Psychologically Peculiar and Particularly Prosperous. Farrar, Straus and Giroux.
- Kingsbury, B., Krisch, N., & Stewart, R. B. (2005). The emergence of global administrative law. Law and Contemporary Problems, 68(3-4), 15-61.
- Lerer, I. A. (2025). Law as extended phenotype: Toward an evolutionary theory of legal systems. Zenodo Working Paper.
- Locke, J. (1689). Two Treatises of Government. En la edición crítica de P. Laslett, Cambridge University Press, 1988.
- Marbury v. Madison, 5 U.S. (1 Cranch) 137 (1803).
- Sunstein, C. R. (2022). How to Save a Constitutional Democracy. University of Chicago Press.
- Weber, M. (1978). Economy and Society: An Outline of Interpretive Sociology (G. Roth & C. Wittich, Eds.). University of California Press.

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